CCP § 1942.5(a).

Plaintiff alleges the Sixth Cause of Action that Plaintiff disclosed to Defendant that Defendant had sexually abused Plaintiff and that after this disclosure, Defendant retaliated by filing an unlawful detainer action. The alleged conduct does not fall within the scope of CCP § 1942.5. No other reason for the retaliation is alleged. Therefore, Plaintiff has failed to plead the elements required for the retaliatory eviction claim and the demurrer to the Sixth Cause of Action is **SUSTAINED**. Plaintiff did not respond to the Demurrer and has therefore not sought leave to amend or explained how amendment could cure the defect. Absent an appearance by Plaintiff and an explanation for how the defect can be cured, leave to amend is not granted.

Motion to Strike. Defendant moves to strike paragraphs 10a, 18a, 19-22, and paragraphs 1-13 of the Sixth Cause of Action. Paragraph 10a forms the basis for the retaliatory eviction claim alleged. Paragraph 18a relates to Plaintiff's mother who is not named as a party in this matter. Nothing in paragraph 18 forms an element or basis for any alleged cause of action. There is nothing improper in paragraphs 19-22. Paragraphs 1-13 form the basis of the retaliatory eviction claim. Only paragraph 18a will be ordered stricken.

The Demurrer is **SUSTAINED** without leave to amend except as noted above for the Fourth and Sixth Causes of Action. Absent an appearance and the showing necessary for leave to amend, leave to amend will also be denied as to the Fourth and Sixth Causes of Action. The Motion to Strike is **GRANTED** as to paragraph 18a and **DENIED** as to the balance. Defendant submitted a proposed Order that will be modified to reflect the Court's ruling. Absent leave to amend being granted, the clerk is directed to dismiss the Complaint, vacate any future dates, and close the file.

SWAIN VS. MARUTI WVRVL OIL INC, ET AL.
CASE NUMBER: 23CV-0202166

Tentative Ruling on Motion for Final Approval of Class Action Settlement: Plaintiff Stephanie Swain brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against several Defendants, including Defendants Maruti WVRVL Oil, Inc. Marti East Ave, Inc., Jagdeep Sing Randhawa, and Prabhjot Singh Randhawa. Plaintiff and Defendants Maruti WVRVL Oil, Inc. Marti East Ave, Inc., Jagdeep Sing Randhawa, and Prabhjot Singh Randhawa have settled the matter for a gross settlement of $1,950,000. The Court granted approval of the PAGA settlement and preliminary approval of the class action settlement on May 4, 2026. The matter is now before the Court for final approval of the class action settlement. As a preliminary matter, not all named Defendants have appeared in this action. Those who have not appeared are considered non-settling Defendants. The Court previously ordered that all non-settling Defendants must be dismissed when judgment is entered.

Final Approval of the Settlement. The parties agreed to settle the matter for $1,950,000. The final breakdown of the settlement is a follows:

Total Settlement Amount	**$1,950,000.00**
Proposed Attorneys' Fees 33 1/3%	-$650,000.00
Litigation Costs and Expenses	-$17,620.02
Settlement Administration Costs	-$14,5000.00
Class Representative Enhancement	-$10,00.000
PAGA Claim Settlement Allocation Payment to Labor and Workforce Development Agency (LWDA) (75%) Payment to Class Members (25%)	$80,000.00 (-$60,000.00) ($20,000.00)
Settlement Monies Remaining to be Disbursed to Class Members and Aggrieved Employees	**$1,197,879.98**

The settlement class is comprised of 504 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. The highest individual settlement is estimated to be $17,381.35, the lowest is $106.63, and the average is estimated to be $2,346.37. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is highly experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced mediator. Lastly, the overall reaction of the class to the proposed settlement was overwhelmingly positive. Notice was provided to 85% of the class members and not one class member objected or chose to excluded themselves from the settlement With the Court already having preliminarily approved this settlement, Plaintiff having complied with the terms of the Court's May 4, 2026 Order, and no objection or opposition being raised, there does not appear to be any reason why the Court should not now grant final approval of the settlement.

<u>Attorneys' Fees</u>. Plaintiff is requesting attorneys' fees of 33.33% the settlement amount, or $650,000, and argues that the requested fees are reasonable under the common fund doctrine and the lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorneys' fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation." *Id.* at 503. The trial court may cross-check a common fund attorneys' fees award with an abbreviated lodestar calculation for the purpose of "bringing a measure of the time spent by counsel into the trial court's reasonableness determination." *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra,* 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

Class Counsel provided evidence that 916.70 attorney hours were spent working on the case thus far. Based on the rates suggested by Class Counsel, the lodestar is $807,115. Multipliers can range from 2 to 4 or even higher. *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255. While the rates suggested for Class Counsel are on the higher end, the total fee requested represents a multiplier of .82. The Court finds that the attorneys' fee of $650,000 requested here is reasonable.

Costs and Expenses. Plaintiff seeks reimbursement for costs and expenses of $17,620.02. The Court preliminary approved costs up to $50,000. The incurred costs appear to be appropriate. The Court finds that the $17,620.02 in costs and expenses incurred by Plaintiff's counsel are reasonable and were necessary to the prosecution of this action.

Enhancement Award. Plaintiff requests a class representative enhancement award of $10,000 for Plaintiff Stephanie Swain. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394–95, citing *Van Vraken v. Atlantic Richfield Co*. (1995) 901 F. Supp. 294, 299. Plaintiff estimates that she has spent 35-40 hours assisting her attorneys with the lawsuit. Plaintiff's efforts have resulted in a monetary benefit to the class members. Plaintiff's individual settlement is estimated to be $2,345.95 which just over the anticipated average. Plaintiff took a risk in bringing the litigation and also signed a general release that the rest of the class did not sign. There has been no objection by any member of the class to the enhancement award. The Court finds that the $10,000 class representative enhancement award to Stephanie Swain is warranted.

Settlement Administration Costs. The Court authorized Phoenix Settlement Administrators as the settlement administrator with an estimated cost of up to $20,000, however, the actual request is for $14,500. Kevin Lee from Phoenix provided a declaration that detailed the work done by Phoenix as well an invoice for the work done. The Court finds $14,500 to be reasonable for settlement administration costs.

Settlement Distribution. The Court notes that the settlement is being funded in two installments. The first installment of $975,000 was paid on July 15, 2026 and the second installment of $975,000 will be paid on May 15, 2027. Per FN. 2 on page 3 of the Memorandum of Points and Authorities, all class members will receive two checks of equal value. It appears from this that all disbursements (Counsel for fees and costs, Plaintiff for class representative enhancement award, Phoenix for settlement administration costs, and the LWDA portion of the PAGA settlement) will also be paid in two equal checks. The Court is aware that all checks expire after 180 days. Therefore, it appears likely that the first round of checks may expire prior to the second checks being issued. The moving papers do not address a mechanism for these funds to reach class members. In order for the Court to approve the settlement, any uncashed checks from the first payment will need to be added to the second check. The Court also notes that counsel has noted a 90 day check cashing deadline before providing all uncashed funds to the *cy pres* beneficiary, Legal Services of Northern California. Banks will generally accept a check up to the 180 day mark even if the check contains a notation that the check is void after 90 days. The check cashing deadline will need to be no less than 180 days from the date of issuance of the second check. Given the complexity caused by the settlement funding in two installments, no funds may be distributed to the *cy pres* beneficiary until ordered at the compliance hearing.

Assuming that Plaintiff can accommodate the paragraph above titled Settlement Distribution, the Court intends to **GRANT** the motion. Plaintiff submitted a Proposed Order and Judgment that will be modified to reflect the Court's ruling. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, December 13, 2027 at 8:30 a.m. in Department 63** for a hearing on compliance. Prior to the compliance hearing, Plaintiff is expected to provide evidence that the first round of class member settlement checks were mailed, that any checks uncashed after 180 days were either included in the second check or sent again, and the number of class members who still have uncashed checks 180 days from date of the issuance of the second checks along with the total for the uncashed checks. Plaintiff should also provide evidence of all other distributions including Class Counsel, Plaintiff, Phoenix, and the LWDA. Evidence shall be filed no later than December 3, 2027.

WELTY, ET AL. VS. REYES BARRERA, ET AL.
CASE NUMBER: 25CV-0208430
Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories, Set One: Plaintiff filed two discovery motions on August 3, 2026 that were both noticed for hearing today. On August 26, 2026, Plaintiff filed a Notice of Withdrawal as to the Motion to Compel Further Responses to Request for Production of Documents. The Court notes that attached to the Notice of Withdrawal, was a Notice of Withdrawal for this motion. Because the clerk is not able to separate documents, this motion was not formally withdrawn and is still on calendar today. Because it is apparent that Plaintiff is no longer seeking a ruling on this motion, absent an appearance by Plaintiff and a request otherwise, the Court will drop the matter from calendar.

WRIGHT, ET AL. VS. OROS BORJON, ET AL.
CASE NUMBER: 25CV-0208213
Tentative Ruling on Motion to Appoint Referee and Order Partition by Sale: Plaintiff Patricia L. Wright, Trustee of the Patricial L. Wright Trust DTD July 8, 2020 and Plaintiff Deborah Lee Hammerich, Trustee of the 2005 Amendment and Restatement of the 2000 Deborah Lee Hammerich Revocable Trust DTD September 28, 2020 move for partition by sale and appointment of a referee. Defendants Jose Fernando Oros Borjon and Ivonne Oros Borjon, Trustees of the Borjon Family Trust DTD January 19, 2019 filed a Response to the Motion.

An interlocutory judgment ordering partition by sale was entered on April 20, 2026. A hearing on fair market value (FMV) was held on July 10, 2026 and the Court found that the FMV is $292,500. The Minutes from the July 10, 2026 hearing were served on all parties by mail on July 10, 2026 which served as the required notice under CCP § 874.317(a). The forty-five days have now elapsed with no party giving notice that they intend to buy out the other tenants. Because Plaintiffs have requested partition by sale, CCP § 874.317(d)(3) applies and the Court must send notice to all parties of the fact that no tenant provided notice of an intent to buy out and that the matter will proceed to partition under CCP §§ 874.318 and 874.320. Should this tentative ruling become final, the clerk is directed to serve today's minutes on the parties in order to constitute the required notice.

The property at issue is a single-family home. Therefore, partition in kind is not feasible and partition by sale will occur under CCP § 874.318(b). The Court finds that the sale shall be an open-market sale. CCP § 874.320(a). The list price shall be $292,500. Pursuant to CCP § 874.320(b), absent an objection, the Court intends to appoint Drew Wahlund of Wahlund and Co. Realty as the disinterested real estate broker. Plaintiffs suggest setting the reasonable commission at no more than 5.5% of the sale price. As no contrary evidence has been provided by either party, the Court will set the commission at 5.5% absent argument otherwise.

Pursuant to CCP § 873.010(a), the Court shall appoint a referee to sell the property. The only proposed referee is Aaron W. Moore, who the Court knows to be a local attorney specializing in real estate law. There appears to